

In specific performance cases, proved in the ordinary way.

The proceeding in specific performance cases will here be, by going on to decree in the usual way. A form of a bill for the purpose is given in these Orders, under the latter clause of the above Order 2, which is italicised.

No form of claim to revive here required.

The other form, given in the English Order, is of a claim in the nature of a bill of revivor. It is not here adopted because the old proceedings to revive suits are done away with, and amendments are substituted, by the Orders of May, 1850.

Case of judgment creditor.

In the English Order there is no "claim" for the lien of a judgment creditor, and the article 6 of the above Order 1 differs from the English article of the same number, in containing a reference to that class of cases. This addition was for the purpose of providing for the cases arising under the Registration Act of this Province, which is in part set forth in the first chapter of this volume.

Files bill under Provincial statute.

The form of bill in such case is given in Schedule A, under the first part of the above Order 2, and is as follows :

Form.

7.
Bill to establish lien of judgment creditor.

By a judgment creditor, who has registered his judgment, seeking a sale or otherwise to enforce his charge or lien.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that in ——— term, in the year ——— (or *G. H. late of ———, deceased, of whom the said A. B. is the executor, or administrator, or assignee, under an assignment, dated, &c., and made, &c., or of whose executor or administrator, or administrator de bonis non, the said A. B. is the assignee under,* &c.*), recovered a judgment in the Court of ——— against C. D., the defendant hereinafter named, for the sum of £——, in an action theretofore brought by the said A. B. against the said C. D., which judgment was duly registered in the Registry of the county of ———, on the ——— day of ———, at which time the said C. D. had divers lands, tenements and hereditaments in the said county, and that the said C. D. is now the owner of the same lands, tenements and hereditaments, subject to the said judgments; to the end, therefore, that the said A. B. may be paid the amount of the said judgment, together with interest thereon, and his costs of this suit, or in de-

* The character of the plaintiff must be described, without detailing the transactions whereby he acquired such character.

fault thereof
ments, or a
satisfaction
plied accord
directions be

(And

We now
last clause o
not provided
drawn on the
them as wou
a party to
"more deta
development
cording to t
of which app
as possible to

*By a pers
agreem
seeking*

To the Hon

Humbly c
agreement, c
by C. D., the
contracted to
tain freehold
the case may
sum of £——
made to the s
form the said
done so; to
may be speci
all proper di
hereby offerin
on his part.

(And

The above
under the En

The follow

*For the sp
partly p*

To the Hon

Humbly co